

Member ID: _____

Time: _____

Rank: _____



LEGAL OFFICE PROCEDURES (245)

STATE 2024

MULTIPLE CHOICE/TRUE AND FALSE

30 @ 5 points each _____ (150 points)

PRODUCTION

Job 1: Durable Power of Attorney _____ (100 points)

Job 2: Letter _____ (100 points)

TOTAL POINTS _____ (350 points)

Test Time: 60 minutes

GENERAL GUIDELINES:

Failure to adhere to any of the following rules will result in disqualification:

1. Member must hand in this test booklet and all printouts if any. Failure to do so will result in disqualification.
2. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests (handwritten, photocopied, or keyed) are allowed in the testing area.
3. Electronic devices will be monitored according to ACT standards.

EXAM GUIDELINES:

1. Ensure this test booklet contains Jobs 1-2.
2. Key all jobs according to the instructions given.
3. Correct any and all formatting, spelling or grammar errors. Use the formatting guide in the *Style & Reference Manual*.
4. Your name or initials should *not* appear on any work you submit. Use your Member ID in any occasion you would normally key your reference initials.
5. In the lower **right** hand corner of ALL work submitted (unless otherwise specified), key your Member ID and job number.
6. If you complete the event before the end of the time allotted, notify the proctor. Time may be considered a factor in determining a winner when there is a tie score.
7. Place your scoring sheet on top of your jobs. Jobs should be placed in numerical order.

PRODUCTION STANDARDS	
0 Errors	100 Points
1 Error	90 Points
2 Errors	70 Points
3 Errors	50 Points
4+ Errors	0 Points

Multiple Choice/True and False Questions

Directions: Identify the letter of the choice that best completes the statement or answers the questions.

1. A right to use or enter upon a parcel of property that belongs to another person is a(n):
 - A. easement
 - B. discretionary right
 - C. access right
 - D. act of deliberate use
2. The Model Rules for Professional Conduct that apply to attorneys do not apply to employees of the attorney.
 - A. true
 - B. false
3. _____ is a reminder system intended to keep track of legal deadlines, such as filing deadlines.
 - A. perpetuity system
 - B. docket system
 - C. tickler system
 - D. notification program
4. A fee that is only paid to an attorney if the case is successful and a monetary judgment awarded is called a(n):
 - A. retaining fee
 - B. contingency fee
 - C. consultation fee
 - D. hourly fee
5. Client retaining fees must be held in a trust account until earned by the attorney.
 - A. true
 - B. false
6. The action of requesting delivery of a person accused or convicted of committing a crime from one jurisdiction to another is:
 - A. extradition
 - B. jurisprudence
 - C. geographic relocation
 - D. deliberative transfer
7. The general name for all documents filed with the court regarding a lawsuit are known as:
 - A. deeds
 - B. affidavits
 - C. pleadings
 - D. motions

8. A legal assistant will typically conduct legal research for the attorney's cases.
 - A. true
 - B. false
9. A statute of limitations constitutes a time limit for suing in a civil case.
 - A. true
 - B. false
10. At the end of a one-year lease agreement, the tenant may remain in the leased unit under a:
 - A. tenancy at will
 - B. tenancy by the entirety
 - C. month to month tenancy
 - D. permanent tenancy
11. Three basic requirements that must exist in order for a contract to be valid are:
 - A. offer, acceptance and delivery
 - B. offer, acceptance and consideration
 - C. acceptance, consideration and finalization
 - D. acceptance, delivery and designation
12. _____ is the use of past cases by courts when making a decision on a current case.
 - A. statute
 - B. judicial review
 - C. interpretation
 - D. precedent
13. A formal hearing where the defendant appears before the court for the first time to hear the charges read and to enter a plea is known as:
 - A. sentencing
 - B. jury trial
 - C. arraignment
 - D. adjudication hearing
14. In all criminal cases, the plaintiff is the state where the crime occurred or the United States government, not the person who was the victim of the crime.
 - A. true
 - B. false
15. Tangible items that people own such as furniture, vehicles, clothing, and other items that are not land are known as:
 - A. intangible property
 - B. personal property
 - C. real property
 - D. mortgaged property

16. A document that transfers ownership of real property is a:
- A. mortgage
 - B. bill of sale
 - C. deed
 - D. property transfer affidavit
17. An asset that is pledged as security for a loan in case the borrower defaults on payment is:
- A. capital
 - B. endowment
 - C. collateral
 - D. consideration
18. State regulations that limit the amount of interest a lender may charge a borrower are known as:
- A. admiralty laws
 - B. commercial laws
 - C. usury laws
 - D. fair credit laws
19. A legal document filed with the state that establishes a corporation is known as:
- A. corporate constitution
 - B. corporate bylaws
 - C. corporate mission
 - D. articles of incorporation
20. A person who dies, leaving a will, is called a(n):
- A. personal representative
 - B. testator
 - C. executor
 - D. executrix
21. A living will is a document that will distribute your assets to your heirs while you are still alive.
- A. true
 - B. false
22. The amendment to the Constitution which reserves all powers not delegated to the United States by the Constitution to the states or to the people is the:
- A. 5th Amendment
 - B. 6th Amendment
 - C. 10th Amendment
 - D. 16th Amendment

23. Contributory negligence is a defense against negligence if a defendant can demonstrate that the plaintiff did something to help cause or aggravate his/her own injuries.
- A. true
 - B. false
24. A court may order a party to pay punitive damages in an amount greater than the opposing party's loss in order to punish the offending party.
- A. true
 - B. false
25. Attorney Laura Gonzalez spends 1 hour meeting with her client and 1.5 hours conducting research for the case. Expenses associated with the case include photocopy expenses of \$7.30 and postage expenses of \$4.32. If Ms. Smith's hourly fee is \$150, what is the amount of the total bill?
- A. \$161.62
 - B. \$311.62
 - C. \$368.62
 - D. \$386.62
26. Petty cash funds are used to pay for small office expenditures such as postage due.
- A. true
 - B. false
27. The following names should be alphabetized in what order?
- A. Valerie D'Armo, Hope Dallas, Terri Mann-Thomas, Paul Manntan
 - B. Valerie D'Armo, Hope Dallas, Paul Manntan, Terri Mann-Thomas
 - C. Hope Dallas, Valerie D'Armo, Paul Manntan, Terri Mann-Thomas
 - D. Hope Dallas, Valerie D'Armo, Terri Mann-Thomas, Paul Manntan
28. What is one benefit of using a numeric filing system instead of an alphabetic filing system?
- A. it is easier to locate a client's file by having to look up the client's number first
 - B. it helps keep information confidential by not having client names visible on files
 - C. there is no chance of misfiling by number
 - D. there is no benefit to numeric filing over alphabetic filing
29. Which method would be best for maintaining a list of client records containing client contact information, case data, etc.
- A. file folder with individual page for each client
 - B. word processing list
 - C. database
 - D. spreadsheet

30. When a legal document is prepared with the expectation that revisions will be made before the document is finalized, it is referred to as a:
- A. draft
 - B. brief
 - C. first copy
 - D. sample copy

Production

Job 1: Durable Power of Attorney

As a legal assistant for Attorney Keisha Johnson, you are to prepare a Durable Power of Attorney. The information to be used in the Durable Power of Attorney is included below, and you must follow the format from the *Style & Reference Manual*.

Grantor: Eli Warenski
Attorney-in-fact: Kaia Smith

Purpose: executing any documents necessary to sell or purchase any real estate on behalf of Grantor and to complete transactions necessary to effectuate those sales or purchases, and further, KAIA SMITH is further empowered to make, do, and transact any and every kind of business relating to Grantor's real estate holdings of whatsoever kind and whatsoever nature on behalf of Grantor

Job 2: Letter

You are now asked to prepare a letter from Keisha Johnson, Attorney at Law, to Eli Warenski, 1777 East Pembine Avenue, Clarksburg, Tennessee 38324. Supply an appropriate subject line to the letter and use the current date.

The body of the letter appears below:

As we discussed at our recent meeting, I understand that you are interested in signing a Durable Power of Attorney that will allow your daughter, Kaia, to sign documents relating to your real estate transactions if you are unable to do so, whether due to an extended out-of-town vacation or an illness or incapacity. I am enclosing a copy of the document I prepared for your review.

As I told you, once you sign such a document, although you will still be able to sign documents on your own behalf, Kaia will also be able to manage any real estate sales or purchases without discussing such matters with you first, and regardless of whether you are actually out of town or unable to sign on your own behalf. You must be certain that you do want to grant this authority to Kaia before signing this Durable Power of Attorney.

If you want to proceed by executing this document, please contact my office and we will schedule a time for you to come in to sign it before two witnesses, one of whom is a notary.

Please contact me with any questions or concerns.